

ORIGINAL

FEDERAL MARITIME COMMISSION

PETITION OF CHINA OCEAN
~~SHIPPING (GROUP) COMPANY~~
FOR A PARTIAL EXEMPTION FROM
THE CONTROLLED CARRIER ACT

Petition No. P3-99

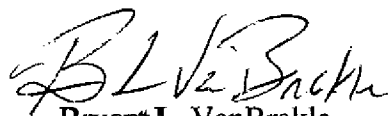
Served: April 16, 2004

CLARIFICATION

On April 1, 2004, the Commission granted in part the above-captioned petition. It has come to light that there may be some confusion as to whether the Commission intended to exempt only Petitioner's tariff "rates" from the implementation delay provided for by section 9(c) of the Shipping Act of 1984, 46 U.S.C. app. § 1708(c) or whether that exemption was intended also to apply to Petitioner's tariff "charges, classifications, rules or regulations."

Controlled carriers are prohibited by section 9(c) from making changes in tariff "rates, charges, classifications, rules or regulations" effective sooner than the 30" day after publication of the change. The relief requested, and granted by the Commission, exempts Petitioner from that prohibition, thereby allowing changes to "rates, charges, classifications, rules or regulations" which result in a decreased cost to the shipper to become effective upon publication.

By the Commission.


Bryant L. VanBrakle
Secretary